

Chapter A5

AIRPORT FEES

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[HISTORY: Adopted by Allegheny County as indicated in article histories. Amendments noted where applicable.]

ARTICLE I

Airport Landing Fees, Parking Charges and Tie-Down Rates**[Adopted 8-7-1980, as amended through 5-23-1991]****§ A5-1. Definitions.**

As used in this article, the following terms shall have the meanings indicated:

AIRCRAFT — Any contrivance used or designated for navigation of, or flight in, or ascent into, the air, except a parachute or other contrivance designed and used primarily as safety equipment.

AIRLINE — All airlines using the airport without having a lease or operating agreement with the County of Allegheny.

AIRPORT — The Pittsburgh International Airport, as it now exists or hereafter may be changed, modified or expanded.

BOARD OF COUNTY COMMISSIONERS — Includes such public officials and public bodies as may by operation of law succeed to any or all of the rights, powers or duties which as of September 1, 1988, lawfully resided in the Board of County Commissioners.

COUNTY — The County of Allegheny.

DIRECTOR — The Director or Acting Director of County's Department of Aviation; as from time to time appointed by the Board of County Commissioners.

FIXED-RATE SPACE — That space on the mezzanine and second floors of the present terminal complex occupied by an airline.

ITINERANT AIRCRAFT — Any aircraft using Pittsburgh International Airport, which aircraft are not operated as part of any airline.

ITINERANT AIRLINE — Any airline using Pittsburgh International Airport on an irregular basis and not pursuant to a schedule published in the official airline guide, and not occupying space in the main terminal complex on a regular basis.

JOINT-USE SPACE — That space in the present terminal complex in which airline has joint utilization rights with other users.

MAINTENANCE AND OPERATION (M&O) RATE SPACE — That space occupied by airlines which was previously constructed or is hereafter constructed as additions to the present terminal complex directly by an airline or space previously constructed or hereafter constructed as additions to the present terminal complex by County, but for which as airline has advance to County cash for the payment of the construction costs of said space.

MAXIMUM GROSS LANDED WEIGHT — The maximum weight, expressed in one-thousand-pound units, at which an aircraft is authorized to land at the airport.

OCCUPANCY — Any occupancy, possession or use of the facilities at Pittsburgh International Airport shall be limited to a "tenancy at will."

PREFERENTIAL USE SPACE — That space in the present terminal in which airline has priority in use over other airlines or users.

REGULAR RATE SPACE — All that space in the present terminal complex leased to an airline other than airline fixed rate space and airline M&O rate space.

RESIDENT AIRLINE — An airline using Pittsburgh International Airport on a regularly scheduled basis

and occupying space in the present terminal complex.

§ A5-2. Landing fee.

- A. Except as otherwise provided herein, for each resident airline, itinerant airline, or itinerant aircraft arrival at the airport, there shall be paid to the County a landing fee based on the maximum gross landed weight of the aircraft and calculated at the rates established from time to time by the Board of County Commissioners.
- B. The landing fee specified above shall be due and payable immediately upon the landing of the aircraft and the owner, the operator and the pilot of each aircraft shall be jointly and severally liable to the County for the payment of all landing fees for that aircraft, and the County may, at its option, demand and collect the landing fee from any of them or from such other person as may be in charge of the aircraft. The landing fee specified above shall be due and payable in such manner and at such place and at such time as the Director shall from time to time determine, but in no event later than 30 days from the time it is incurred.
- C. The provisions of this section shall not apply to:
 - (1) Aircraft whose owner or operator is a party to a contract with the County providing for payment of landing fees.
 - (2) A landing by an aircraft which, having taken off from the airport and not having landed at another airport, returns to the airport because of actual or anticipated mechanical, meteorological, operating or other difficulties.
 - (3) An emergency landing, as defined by the Federal Aviation Administration.
 - (4) Aircraft of the United States of America or Commonwealth of Pennsylvania.
 - (5) Aircraft exempt by Federal or Pennsylvania law from the payment of landing fees.
 - (6) Arrivals of airline aircraft conducting training, test, ferry, courtesy, inspection and other flights as set forth herein for which no monetary fee or charge is made or received shall be exempt to the extent that the total number of flights by airline in any given month is not more than 5% of the number of aircraft arrivals by airline at the airport during that month for which a monetary fee or charge is made.

§ A5-3. Aircraft parking fee.

- A. Except as otherwise provided herein, for each aircraft parked on the cargo ramp, or such other area of the airport as may from time to time be designated by the Director as an aircraft parking area, including the terminal ramp during such hours that it is designated by the Director as an aircraft parking area, there shall be paid to the County an aircraft parking fee based on the maximum gross landed weight of the aircraft and calculated at the rates established from time to time by the Board of County Commissioners.
- B. The aircraft parking fee shall be due and payable in such manner and at such place and at such time as the Director shall from time to time determine, but in no event later than the time of the departure of the aircraft from the parking area for itinerant aircraft and itinerant airlines, and the owner, the operators and the pilot of each and all aircraft shall be jointly and severally liable to the County for the payment of each aircraft parking fee for that aircraft. The County may, at its option, demand and collect the aircraft fee from any of the above or from such other person as may be in charge of the

aircraft.

C. Exceptions.

- (1) The provisions of this section shall not apply to:
 - (a) Aircraft whose owner or operator is a party to a contract with the County providing for payment of aircraft parking fees.
 - (b) Aircraft of the United States of America or the Commonwealth of Pennsylvania.
 - (c) Aircraft which are by federal or Pennsylvania law exempt from the payment of aircraft parking fees.
 - (d) Aircraft in the process of loading and unloading passengers; and fueling; provided that this exemption shall not exceed one hour in any given instance.
- (2) However, notwithstanding this exemption, airline or aircraft may be subject to other fees and charges under this article.

§ A5-4. Terminal ramp and gate fee.

- A. Except as otherwise provided herein, for each and every operation by an itinerant airline aircraft requiring the use of a terminal ramp or gate at the airport, there shall be paid to the County a ramp fee and a gate fee per operation calculated at the rates established from time to time by the Board of County Commissioners. For purposes of this section, an "operation" shall mean each one-hour period or fraction thereof during which the aircraft is utilizing ramp or gate facilities at the airport.
- B. The above ramp and gate fee shall be due and payable at such time as the Director shall from time to time determine, but in no event later than the time of the departure of the aircraft from the ramp area for itinerant aircraft and itinerant airlines, and the owner, the operator and the pilot of each and all aircraft shall be jointly and severally liable to the County for the payment of each ramp and gate fee for that aircraft. The County may, at its option, demand and collect the ramp and gate fee from any of the above described or from such other person as may be in charge of the aircraft.
- C. Resident airlines shall pay a lineal foot ramp fee per month at a rate established from time to time by the Board of County Commissioners for each lineal foot occupied during any portion of the calendar month, provided that a resident airline whose first day of use of the ramp is on or after the 15th day of the month shall be exempt from payment of the ramp fee for that calendar month. Said lineal ramp fee shall be due and payable in such manner and at such place and at such time as the Director shall from time to time determine, but in no event later than 30 days from the time it is incurred.
- D. The provisions of this section shall not apply to:
 - (1) Aircraft whose owner or operator is a party to a contract with the County providing for payment of ramp and gate fees.
 - (2) Aircraft of the United States of America or the Commonwealth of Pennsylvania.
 - (3) Aircraft which are by federal or Pennsylvania law exempt from the payment of ramp and gate fees.

§ A5-5. Terminal space fee.

- A. Each and every operator who shall occupy, preferentially or jointly, space in the terminal building at the airport shall pay to the County an amount based upon the amount of square footage so occupied and calculated at rates established from time to time by the Board of County Commissioners. As applied to joint-use space, charges for such usage shall be apportioned between the users as follows:
- (1) Twenty percent apportioned equally between users.
 - (2) Eighty percent apportioned according to enplaned passengers.
- B. The terminal space rental described in Subsection A of this section shall be due and payable in such manner and at such place and at such time as the Director shall from time to time determine, but in no event later than 30 days from the time it is incurred.

§ A5-6. Cargo space fee.

For each and every operator, or other use, of the cargo facilities, who shall occupy space in the cargo facilities without having executed a cargo agreement with the County, there shall be a charge of per square foot per year at a rate established from time to time by the Board of County Commissioners.

§ A5-7. Security costs.

For each and every enplaned passenger of airline, both resident and itinerant, requiring preboarding screening in accordance with FAA regulations, there shall be a charge for each enplaned passenger at a rate established from time to time by the Board of County Commissioners, payable monthly in accordance with procedures which the Director may from time to time establish.

§ A5-8. International arrivals building ramp and facilities fees.

- A. Except as otherwise provided herein, for each and every operation by an aircraft requiring the use of the ramp or facilities of the international arrivals building at the airport, there shall be paid to the County a ramp fee and a facilities fee per operation at rates established from time to time by the Board of County Commissioners. For purposes of this section, an "operation" shall mean each one-hour period or fraction thereof during which the aircraft is utilizing said ramp or gate facilities at the airport.
- B. The ramp and facilities fee described in Subsection A of this section shall be due and payable at such time as the Director shall from time to time determine, but in no event later than the time of the departure of the aircraft from the ramp or facilities area, and the owner, the operator and the pilot of each aircraft shall be jointly and severally liable to the County for the payment of each ramp and facilities fee for that aircraft. The County may, at its option, demand and collect the ramp and facilities fee from any of the above-described or from such other person as may be in charge of the aircraft.
- C. The provisions of this section shall not apply to:
- (1) Aircraft whose owner or operator is a party to a contract with the County providing for payment of said ramp and facilities fees.
 - (2) Aircraft of the United States of America or the Commonwealth of Pennsylvania.
 - (3) Aircraft which are by federal or Pennsylvania law exempt from the payment of such ramp and facilities fees.

§ A5-9. Violations and penalties.

- A. Any person violating any provision of this article shall, upon conviction thereof at a summary proceeding, be sentenced to pay a fine not in excess of \$100 to be paid to the use of the County, with costs of prosecution, or to be imprisoned in the County jail for not more than 30 days, or both.
- B. In addition to any sums paid pursuant to Subsection A of this section, any person violating any provision of this subpart may, at the discretion of the County, be required to pay a civil fine of \$500, which fine may be collected by suit brought in the name of the County in like manner as debts of like amount may be sued for.
- C. Each violation hereunder shall constitute a separate offense subject to the penalties and fines set forth in this section.

§ A5-10. Terms and conditions of use and occupancy for resident airlines.

All users of airport facilities shall abide by the terms and conditions of use and occupancy, attached to this subpart as Exhibit A, and made a part hereof.¹

§ A5-11. Enforcement; administration.

The County police shall have the power to enforce this article, and the Director shall have the power and duty to administer this article, including, but not limited to, the power and duty to design and require the use of such forms, and to establish such procedural rules as he shall from time to time deem necessary or conducive to the proper and efficient administration of this article.

1. Editor's Note: Exhibit A is included at the end of this chapter.

ARTICLE II

Airport Landing Fees, Aircraft Parking Fees and Ramp and Gate Fees**[Adopted 9-6-1988]****§ A5-12. Definitions.**

As used in this article, the following terms shall have the meanings indicated:

AIRCRAFT — Any contrivance used or designated for navigation of, or flight in, or ascent into, the air, except a parachute or other contrivance designed and used primarily as safety equipment.

AIRPORT — The Allegheny County Airport, as it now exists or hereafter maybe changed, modified or expanded.

BOARD OF COUNTY COMMISSIONERS — Such public officials and public bodies as may by operation of law succeed to any or all of the rights, powers or duties which as of January 1, 1982, lawfully resided in the Board of County Commissioners.

COUNTY — The County of Allegheny.

DIRECTOR — The Director or Acting Director of County's Department of Aviation; as from time to time appointed by the Board of County Commissioners.

MAXIMUM GROSS LANDING WEIGHT — The maximum weight, expressed in one-thousand-pound units, at which an aircraft is authorized to land at the airport.

§ A5-13. Landing fee.

- A. Except as otherwise provided herein, for each aircraft arrival at the airport there shall be paid to the County a landing fee based on the maximum gross landing weight of the aircraft and calculated at the rates as established from time to time by the Board of County Commissioners; provided, the landing fee set forth in this section for aircraft having a gross weight of 5,000 to 9,999 pounds shall be reduced by 50% for each landing where the owner or operator of the aircraft, after landing and before leaving the airport, purchases aviation fuel for said aircraft from a supplier authorized by the County to sell such fuel at the airport.
- B. The landing fee specified in Subsection A above, shall be due upon landing of the aircraft, and the owner, the operator and the pilot of each aircraft shall be jointly and severally liable to the County for the payment of all landing fees for that aircraft, and the County may, at its option, demand and collect the landing fee from any of them or from such other person as may be in charge of the aircraft.
- C. The provisions of this section shall not apply to:
 - (1) Aircraft whose owner or operator is a party to a contract with the County which contract provides for payment of landing fees.
 - (2) A landing by an aircraft which, having taken off from the airport and not having landed at another airport, returns to the airport because of actual or anticipated mechanical, meteorological, operating or other difficulties.
 - (3) An emergency landing, as defined by the Federal Aviation Administration.
 - (4) Aircraft of the United States of America or the Commonwealth of Pennsylvania.
 - (5) Aircraft exempt by Federal or Pennsylvania law from the payment of landing fees.

- (6) Aircraft landing on official FAA business with the general aviation district office or flight examiners.

§ A5-14. Aircraft parking fee.

- A. Except as otherwise provided herein, for each aircraft parked at 12:00 midnight on the itinerant aircraft parking ramp of the airport, or such other area of the airport as may from time to time be designated by the Director as an aircraft parking area, there shall be paid to the County an aircraft parking fee based on the gross landing weight of the aircraft and calculated at rates established from time to time by the Board of County Commissioners.
- B. The aircraft parking fee shall be due in no event later than the time of the departure of the aircraft from the parking area, and the owner, the operator and the pilot of the each aircraft shall be jointly and severally liable to the County for the payment of each aircraft parking fee for that aircraft. The County may, at its option, demand and collect the aircraft parking fee from any of the above or from such other person as may be in charge of the aircraft.
- C. The provisions of this section shall not apply to:
 - (1) Aircraft whose owner or operator is a party to a contract with the County which contract provides for payment of aircraft parking fees.
 - (2) Aircraft of the United States of America or the Commonwealth of Pennsylvania.
 - (3) Aircraft which are by federal or Pennsylvania law exempt from the payment of the aircraft parking fees.

§ A5-15. Tie-down fee.

- A. Except as otherwise provided herein, for the use of aircraft tie-down facilities at the airport, there shall be paid to the County a tie-down fee as established from time to time by the Board of County Commissioners. **[Amended 1-17-1991]**
- B. The tie-down fee shall be due and payable at such time as the Director shall from time to time determine, and the owner, the operator, and the pilot of each aircraft shall be jointly and severally liable to the County for the payment of each tie-down fee for that aircraft. The County may, at its option, demand and collect the tie-down fee from any of the above-described or from such other person as may be in charge of the aircraft.
- C. The provisions of this section shall not apply to:
 - (1) Aircraft whose owner or operator is a party to a contract with the County which provides for the payment of tie-down fees.
 - (2) Aircraft of the United States of America or the Commonwealth of Pennsylvania.
 - (3) Aircraft which are by federal or Pennsylvania law exempt from the payment of tie-down fees.

§ A5-16. Violations and penalties.

- A. Any person violating any provision of this article shall, upon conviction thereof at a summary proceeding, be sentenced to pay a fine not in excess of \$100 to be paid to the use of the County, with costs of prosecution, or to be imprisoned in the County jail for not more than 30 days, or both.

- B. In addition to any sum paid pursuant to Subsection A of this section, any person violating any provision of this article may, at the discretion of the County, be required to pay a fine of \$500, which fine may be collected by suit brought in the name of the County in like manner as debts of like amount may be sued for.
- C. Each violation hereunder shall constitute a separate offense subject to the penalties and fines set forth in this section.

§ A5-17. Enforcement; administration.

The County police shall have the power to enforce this article, and the Director shall have the power to design and require the use of such forms, and to establish such procedures as he shall from time to time deem necessary or helpful to the proper administration of this article.